

Delaware County Commissioners Meeting September 16th 2024

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=0F249CTLpD0
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Target Category	delaware_county

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Delaware County Commissioners Meeting Report

Meeting Date: September 16, 2024

Prepared by: Expert Civic Analyst

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The regular meeting of the Delaware County Commissioners was called to order at 9:00 AM on Monday, September 16, 2024, by the presiding officer.
- **Attendance:**
 - **Present:** Commissioner Henry, Vice President Reagan, President King, Attorney John Brooke, and Auditor Ed Carroll.
 - **Absent:** None noted.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with attendees standing for the Pledge of Allegiance.

- **Approval of Minutes:** The minutes from the September 3, 2024 meeting were presented and approved.
 - *Action & Vote Disposition:* Motion made, seconded, and passed by roll call vote (Commissioner Henry: Yes, Commissioner Reagan: Yes, Commissioner King: Yes).
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4. Substantive Business & Board Action

- **00:01:07 Table Business**
 - **Sponsor / Presenter:** Attorney John Brooke
 - **Deliberation Summary:** Attorney Brooke noted that he received changes regarding the grant policy and credit card policy. Because he was out of town the previous week, he requested to keep the item on the table until the next meeting.
 - **Action & Vote Disposition:** Kept on the table by consensus.
- **00:01:53 Opening Bids: Parking Lot at the Justice Center**
 - **Sponsor / Presenter:** John Brooke / Angie
 - **Deliberation Summary:** One bid was received from E&M Paving (Daleville, Indiana) following the required forms. Three pricing options were submitted:
 - Option 1 (Phases 1 and 2): \$328,800.00
 - Option 2 (Phase 1 only): \$250,546.00
 - Option 3 (Phase 2 only): \$104,168.00
 - **Action & Vote Disposition:** Motion made and seconded to take the bids under advisement. Approved by roll call vote (Commissioner Henry: Yes, Commissioner Reagan: Yes, Commissioner King: Yes).
- **00:03:20 Dispersment Request: Mental Health Facility Construction**
 - **Sponsor / Presenter:** Attorney John Brooke
 - **Deliberation Summary:** Attorney Brooke presented the first disbursement request from the contractor for the construction of the mental health facility, totaling \$72,600.00. Additional details requested by Brooke were reviewed and found to be in order. Funds will be drawn from Project One.
 - **Action & Vote Disposition:** Motion made and seconded to approve the disbursement of \$72,600.00. Approved by roll call vote (Commissioner Henry: Yes, Commissioner Reagan: Yes, Commissioner King: Yes).
- **00:04:27 Grant Approval: Marathon Portable Lighting Grant**
 - **Sponsor / Presenter:** Mr. Cummings
 - **Deliberation Summary:** Mr. Cummings reported receiving a \$1,500 grant from Marathon for portable lighting for backups. Auditor Tanya confirmed a new account needs to be established for this grant.
 - **Action & Vote Disposition:** Motion made and seconded to approve the grant and the establishment of a new accounting fund. Approved by roll call vote

(Commissioner Reagan: Yes, Commissioner Henry: Yes, Commissioner King: Yes).

Note: Attorney Brooke will prepare the ordinance for the next meeting.

- **00:05:16 SRI Service Agreement**

- **Sponsor / Presenter:** Board / Attorney John Brooke
- **Deliberation Summary:** The service agreement with SRI was presented for consideration.
- **Action & Vote Disposition:** Motion made and seconded to table the SRI agreement. Approved by roll call vote (Commissioner Henry: Yes, Commissioner Reagan: Yes, Commissioner King: Yes).

- **00:05:46 Payment of Claims**

- **Sponsor / Presenter:** Board / Administration
- **Deliberation Summary:** Payment of claims presented in the amount of \$2,229,546.43.
- **Action & Vote Disposition:** Motion made and seconded. Approved by roll call vote (Commissioner Henry: Yes, Commissioner Reagan: Yes, Commissioner King: Yes).

- **00:06:04 Payment of Payroll**

- **Sponsor / Presenter:** Board / Administration
- **Deliberation Summary:** Payment of payroll for September 1, 2024, in the amount of \$990,527.81.
- **Action & Vote Disposition:** Motion made and seconded. Approved by roll call vote (Commissioner Henry: Yes, Commissioner Reagan: Yes, Commissioner King: Yes).

5. Open Public Comment / Citizen Forum

- **00:06:43 Katie Williams (on behalf of State Representative Sue Arrington)**

- **Key Concerns:** Read a prepared statement from State Representative Sue Arrington criticizing the Board's September 3rd action to reinstate a solar moratorium without public notice, calling it a lack of transparency and a "betrayal of the public trust." The statement emphasized economic opportunities from renewable energy and urged the board to lift the moratorium.
- *(Board Response/Exchange: Commissioner King pushed back on the criticism, questioning Representative Arrington's legislative record and involvement at the county level. A brief debate ensued between commissioners and the speaker regarding state versus local jurisdiction over solar policy.)*

- **00:11:33 Cheryl Swingley**

- **Key Concerns:** Voiced strong opposition to the September 3rd solar moratorium, arguing it was passed without notice, disrespects the two-year work of the nine-member solar study committee, and discourages citizen participation and business investment. She also argued that companies file contracts with records offices and that the board's characterization of business practices was misleading.

- **00:14:57 Linda Hansen**
 - **Key Concerns:** Speaking as the spokesperson for the League of Women Voters of Muncie-Delaware County, Hansen stated that the League supported ending the previous moratorium to allow utility-scale solar projects. She criticized the impulsive passage of the September 3rd moratorium via suspended rules without advertising or public input, warning that it puts negotiated progress, tax revenue, and the county at risk for expensive lawsuits. She urged the board to rescind the moratorium.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Commissioner King noted that a meeting between the Solar Company and local residents is scheduled for October 24th to discuss the proposed project before the board takes further action.
 - **Adjournment:**
 - **Action & Vote Disposition:** A motion and second were made to adjourn the meeting. Approved by roll call vote (Commissioner Reagan: Yes, Commissioner Henry: Yes, Commissioner King: Yes).
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